

a contract, which is specifically different from fraudulent performance of a contract. This was further affirmed in *Dhital v. Nissan North America*, supra, 84 Cal.App.5th 828, which determined that “[f]raudulent inducement claims fall within an exception to the economic loss rule recognized by our Supreme Court.” The facts of *Dhital* are approximate to the facts presented in this case, in which Plaintiff’s claimed they were fraudulently induced into entering a contract through Nissan’s fraudulent concealment of an alleged transmission defect. Here, Plaintiff claims that entry into the contract was fraudulently induced by Defendant’s concealment of an alleged transmission defect, which falls squarely within the exception to the economic loss rule. Defendant has failed to meet its initial burden. Summary Adjudication is **DENIED** as to Issue 5.

In summary, summary adjudication is **DENIED** as to Issues 2, 3, 4 and 5. Summary adjudication is **GRANTED** as to Issue 1. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant shall prepare the Order.

9:00 a.m. – Review Hearings

BAKER VS. TERRILL

CASE NUMBER: 25CV-0207907

This matter is on calendar for review regarding status of counsel. While a Motion to be Relieved was granted on April 27, 2026, Plaintiff’s counsel has not filed a Notice of Entry of Order and is therefore not relieved. Plaintiff’s counsel was ordered to provide notice of today’s hearing to all parties. There is nothing in the file to indicate that Plaintiff’s counsel did so. **An appearance is necessary on today’s calendar.**

CITIBANK, N.A. VS. GARNICA, JR

CASE NUMBER: 24CVG-00889

This matter is on calendar for review regarding status of CCP § 664.6 dismissal. Plaintiff filed a status statement informing the Court that an agreement has been reached and a stipulation is being distributed to all parties for signature. Plaintiff requests 90 days to file the stipulation. This is essentially the same information provided the last time Plaintiff requested a continuance. The matter is continued to **Monday, August 24, 2026 at 9:00 a.m. in Department 63** for status of dismissal. The parties are ordered to take the necessary steps to close the court file, i.e. a dismissal with a CCP § 664.6 retention. If the matter has not been dismissed prior to the next hearing, the Court orders Plaintiff to file a status statement explaining the delay at least five court days prior to the hearing. **No appearance is necessary on today’s calendar.**

EL RIO ESTATES LLC VS. JOHNSON-SARGENT, ET AL.

CASE NUMBER: 26CVG-00088

This matter is on calendar for status of accounting. The Inventory and Accounting have been filed pursuant to California Civil Code § 798.61. The clerk is directed to close the file. **No appearance is necessary on today’s calendar.**

KNIGHT VS. HIGHWAY SPECIALTY COMPANY INC

CASE NUMBER: 24CV-0206254

This matter is on calendar for status of arbitration. Plaintiff previously informed the Court that Plaintiff intends to file a demand for arbitration. At the last hearing on April 27, 2026, both parties were ordered to file a status statement at least five days prior to today’s hearing. Nothing has been filed since the last hearing. **An appearance is necessary on today’s calendar.**